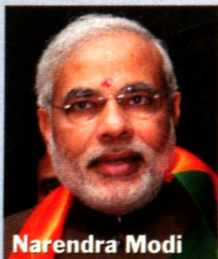


TERROR LAWS HANG FIRE

The Union Government has shown no urgency in clearing anti-crime bills of the State Governments



Narendra Modi

Gujarat: The Gujarat Control of Organised Crime Bill was passed by the State Assembly and the draft bill was approved by the Central Government in 2003. It is pending presidential approval since June 2004 after the current UPA Government came to power.



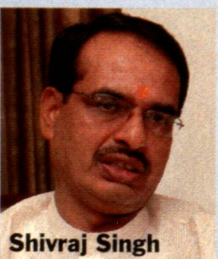
Vasundhara Raje

Rajasthan: The Rajasthan Control of Organised Crime Bill, 2006, was sent for approval to Delhi in January 2006. A watered-down version of MCOCA after Central objections, it provides for pre-arrest detention of suspects in judicial custody. Arrest possible only on written orders by an officer of SP rank.



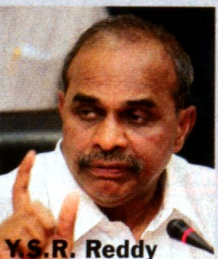
Mayawati

Uttar Pradesh: On directions from the high court, the Mayawati Government introduced the Uttar Pradesh Control of Organised Crime Bill to contain the mafia and growing terrorism in the state, about six months back. The bill has been pending approval before the President.



Shivraj Singh

Madhya Pradesh: A draft of the Madhya Pradesh Control of Terrorism, Unlawful Activities and Organised Crime Bill (Aatank Vadi Evam Uchhedak Gatividhiya Tatha Sangathit Apradh Niyantran Vidheyak), is awaiting Central nod since last year. An approval is mandatory for all criminal laws passed by the state.



Y.S.R. Reddy

Andhra Pradesh: A draft of the Andhra Pradesh Control of Organised Crime Bill was passed by the earlier Government, headed by Chandrababu Naidu, in the state Assembly in 2001. But the Bill has been awaiting the clearance of the Central Government since 2006.

Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001) has allowed the US security agencies to search telephone, e-mail communications, medical, financial and other records and eased restrictions on foreign intelligence gathering within the United States. The US experience of creating a Department of Homeland Security with the avowed objective of protecting the country from terrorist attacks needs to be replicated in India with the Central Law Enforcement Agency to fight terror.

Countries like Australia have given, "stop and search" powers to their police, which allows the police to stop and search people. The country also has a "Control order", that allows the police to approach a closed court and ask for restrictions to be placed on someone who poses a terror threat. The restrictions can limit who the suspect can talk to, where the person can go and what devices the suspect can use (phone and Internet). The UK's new Counter Terrorism Bill extends the pre-charge detention of terror suspects from 28 days to 42 days.

Even Bangladesh has implemented new terror laws creating special tribunals to hear terror cases and clear these in six months with a provision of death penalty for terrorism and financing of terrorism. India, meanwhile, careens from blast to blast.

"India's police and intelligence forces—with tiny exceptions—remain overwhelmingly undermanned, under-resourced and primitive in their day-to-day functioning. India has failed even to create a national database on crime and terrorism—despite a mandate to create it and support organisational structures, including the Multi-Agency Centre and the Joint Task Force on Intelligence in the Intelligence Bureau, that dates back to 2001," says Ajai Sahni, executive director, Institute for Conflict Management.

India needs to take out a leaf from global laws to tackle terrorism besides re-arming its human intelligence network which is important to ward off terror attacks. It also has to set up a real-time information sharing system with key intelligence agencies to avert terror attacks. Another important aspect is to work on its border management and control policies, because ineffective monitoring of its porous borders with Bangladesh and Nepal has made these into safe transit points for terrorists. While India will have to fight its own battle against terror, it will have to ensure that its laws have teeth, with checks and balances, to combat the scourge of terrorism.

with Sandeep Unnikrishnan